



## CHAPTER xlvii

An Act to empower Shell-Mex and B.P. Limited to construct pipelines between Walton-on-Thames and London Airport and to acquire lands and for other purposes.

[29th July 1959.]

**W**HEREAS Shell-Mex and B.P. Limited (hereinafter referred to as "the Company") are a company within the meaning of the Companies Act 1948 and are a company limited by shares:

And whereas the whole of the share capital of the Company is owned by a number of companies comprising the Shell British Petroleum and Eagle Groups of oil companies:

And whereas the Company carry on the business of marketing petroleum products throughout the United Kingdom:

And whereas the Company supply for use at London Airport in the urban districts of Feltham Hayes and Harlington and Yiewsley and West Drayton in the county of Middlesex (hereinafter referred to as "London Airport") large quantities of petroleum products including aviation turbine fuel:

And whereas supplies of petroleum products are now conveyed to London Airport by road:

And whereas the demand for aviation turbine fuel at London Airport is rapidly increasing and will continue to increase:

And whereas the conveyance by road of aviation turbine fuel in the quantities that will in the future be required would suffer from and indeed aggravate the existing congestion of traffic on the roads leading to London Airport and the regular supply of aviation turbine fuel thereto would thereby be jeopardised:

And whereas supplies of aviation turbine fuel can readily be conveyed by the Company to a depot at Walton-on-Thames in the county of Surrey:



And whereas the conveyance of aviation turbine fuel from the said depot to London Airport by pipeline would be more reliable than by any other available alternative method of transport:

And whereas it is expedient in the public interest that the Company be empowered to construct the line or lines of pipes as in this Act provided to convey aviation turbine fuel from the said depot to London Airport and to acquire lands:

And whereas it is expedient that the other powers contained in this Act should be conferred on the Company:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works by this Act authorised such plans showing also the lands which may be acquired or used compulsorily under the powers of this Act and for the purposes of this Act together with a book of reference to the said plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerks of the county councils of the counties of Surrey and Middlesex respectively and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Shell-Mex and B.P. (London Airport Pipeline) Act 1959.

Incorporation  
of Acts.

2.—(1) The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

(a) the Lands Clauses Acts with the following exceptions and modifications:—

(i) section 92 and sections 127 to 133 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the sureties mentioned in that section;



(b) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof; and

(c) Part IV (Minerals underlying waterworks) of the Third Schedule to the Water Act 1945.

(2) In the construction for the purposes of this Act of the provisions of the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and of the Third Schedule to the Water Act 1945 incorporated with this Act—

the expressions “ the undertakers ” or “ the promoters of the undertaking ” or “ the company ” shall mean the Company;

the expression “ the railway ” shall mean the line or lines of pipes by this Act authorised to be constructed by the Company and the centre of the said line or lines as shown on the deposited plans shall be deemed to be the centre of the railway;

the expressions “ the waterworks ” “ pipes or other conduits for the collection passage or distribution of water ” and “ the reservoirs ” shall mean the line or lines of pipes by this Act authorised to be constructed by the Company.

(3) For the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Company shall be deemed to be a railway company and section 36 (except paragraph 4 thereof) of the Railway Companies Act 1867 shall apply accordingly.

3.—(1) In this Act the following words and expressions have the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):— Interpretation.

“ the Act of 1950 ” means the Public Utilities Street Works Act 1950;

“ the Company ” means Shell-Mex and B.P. Limited;

“ the highway authority ” means in the case of a highway repairable by the inhabitants at large the authority in whom that highway is vested and in the case of a highway not so repairable the council of the county district in which it is situate;

“ land ” includes land covered with water;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by the Lands Tribunal Act 1949 by the Town and Country Planning Acts 1947 to 1959 and by this Act;



“ the limits of deviation ” means the limits of deviation shown on the deposited plans;

“ the Minister ” means the Minister of Transport and Civil Aviation;

“ the pipeline ” means any line or additional line of pipes authorised by this Act and any work constructed or to be constructed or thing placed or to be placed under subsection (2) of section 4 (Power to construct pipeline) of this Act and includes any such line or additional line of pipes work or thing as enlarged replaced relaid or altered under section 10 (Alteration and improvement of pipeline) of this Act;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ the tribunal ” means the arbitrator or other person to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Power to  
construct  
pipeline.

4.—(1) Subject to the provisions of this Act the Company may construct in the line and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections a line or lines of pipes commencing in the urban district of Walton and Weybridge in the county of Surrey in the enclosure numbered 15 in the said urban district on the 1/2500 Ordnance Map (Revision of 1933) Surrey Sheet No. XII.1 passing thence through so much of the said urban district as lies between the point of commencement and the boundary between the said urban district and the urban district of Sunbury-on-Thames in the county of Middlesex thence through the said urban district of Sunbury-on-Thames thence through the urban district of Feltham in the county of Middlesex thence through the said urban district of Sunbury-on-Thames and thence into and terminating in the said urban district of Feltham in London Airport.

(2) In addition to the line or lines of pipes hereinbefore described the Company may construct and place upon in under or over any lands which the Company have acquired or over which they have obtained an easement under this Act all such buildings structures machinery electric cables works and apparatus of whatever character and temporary roads and tramroads



as may be necessary or convenient in connection with or subsidiary to the said line or lines of pipes or necessary for inspecting maintaining repairing cleansing managing working or using the same.

(3) The Company may for the purpose of constructing the pipeline break up or open any street within the limits of land to be acquired shown on the deposited plans.

(4) The Company may for the purposes of and in connection with the pipeline and within the said limits raise sink or otherwise alter the position of or may remove any sewer drain gas or water main or pipe or electric line or any other apparatus of a like nature making in case of alterations proper substituted works in the meantime.

(5) The Company shall not raise sink or otherwise alter any telegraphic line belonging to or used by the Postmaster-General except in accordance with the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

(6) Any electrical works or equipment constructed erected laid down maintained worked or used in pursuance of the powers conferred by this Act shall be so constructed erected or laid down and so maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(7) Any telegraphic and telephonic apparatus used under the provisions of this section shall be so used as not to contravene the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(8) In this section the expression "street" has the same meaning as in the Act of 1950 and in subsection (5) of this section the expression "alter" has the same meaning as in the Telegraph Act 1878.

5. Subject to the provisions of this Act if the construction of the line or lines of pipes authorised by section 4 (Power to construct pipeline) of this Act is not completed within five years from the first day of October nineteen hundred and fifty-nine then on the expiration of that period the powers granted to the Company by the said section for constructing the said line or lines of pipes shall cease except as to so much thereof as is then completed. Period for completion.

6.—(1) The Company during and for the purpose of constructing the pipeline may temporarily stop up and divert and interfere with any road or footpath and may for all reasonable time divert the traffic therefrom and prevent all persons other Temporary stoppage of roads and footpaths.



than those bona fide going to or from any land house or building abutting on the road or footpath from passing along and using the same.

(2) The Company shall provide reasonable access for persons (whether on foot or proceeding by vehicle) bona fide going to or from any such land house or building.

(3) The Company shall not exercise the powers of this section—

(a) as respects any trunk road without giving to the Minister reasonable notice of the times at which interference with the trunk road is intended to take place and complying with such reasonable conditions as he may require; or

(b) as respects any other road or any footpath without the consent of the highway authority. Such consent shall not be unreasonably withheld but may be given subject to such reasonable conditions as the highway authority may require and any question whether such consent is unreasonably withheld or any conditions so imposed are unreasonable shall be determined by the Minister.

(4) The exercise by the Company of the powers conferred by this section in relation to any road or footpath shall not prejudice or affect the right of the Postmaster-General—

(a) to maintain inspect repair renew or remove any telegraphic line belonging to or used by him which may for the time being be under in upon over along or across that road or footpath; or

(b) for the purpose of such maintenance inspection repair renewal or removal to enter upon or break open that road or footpath.

Notice to  
commissioner  
of police.

7.—(1) Before commencing the construction of any works forming part of the pipeline involving the temporary closing to vehicular traffic of any street or part of a street either absolutely or to the extent of one-third or more of the width of the carriageway the Company shall give to the Commissioner of Police of the Metropolis (in this section referred to as “the commissioner”) reasonable notice in writing of their intention so to do and such notice shall specify the works to which the notice relates and the streets or parts of streets which will be closed in the course of the execution of such works.

(2) The Company shall make such arrangements with the commissioner as shall be reasonably necessary so as to cause as little interference with vehicular traffic as may be reasonably practicable during the execution of such works.



8. Subject to the provisions of this Act in constructing the line or lines of pipes authorised by section 4 (Power to construct pipeline) of this Act the Company may deviate laterally from the line or situation thereof shown on the deposited plans to any extent not exceeding the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent upwards or downwards.

Power to deviate.

9. In addition to the line or lines of pipes authorised by section 4 (Power to construct pipeline) of this Act and notwithstanding that the period prescribed by section 5 (Period for completion) of this Act may have expired the Company may within the limits of deviation construct additional lines of pipes as and when the occasion may require and in connection with such construction may exercise any of the powers conferred on the Company by this Act in relation to the line or lines of pipes authorised by the said section 4:

Additional lines of pipes.

Provided that the exercise by the Company of the powers conferred by this section shall be subject to the like restrictions and provisions (other than those imposed by section 5 (Period for completion) of this Act) as those applying to the exercise of the powers conferred on the Company by this Act in relation to the line or lines of pipes authorised by the said section 4.

10. Subject to the provisions of this Act the Company may from time to time maintain enlarge replace relay and alter temporarily or permanently the line or lines of pipes authorised by section 4 (Power to construct pipeline) of this Act or any additional line of pipes authorised by the last foregoing section of this Act and any work constructed or thing placed under subsection (2) of the said section 4 or any part thereof:

Alteration and improvement of pipeline.

Provided that nothing in this section shall authorise the Company to deviate laterally beyond the limits of deviation.

11. In the exercise of the powers conferred by subsections (3) and (4) of section 4 (Power to construct pipeline) and section 10 (Alteration and improvement of pipeline) of this Act the Company shall cause as little detriment and inconvenience as circumstances admit and for any damage caused to any person shall pay compensation to be settled in default of agreement by arbitration.

Company to minimise damage and pay compensation in certain circumstances.

12. For the purposes of paragraph (b) of subsection (2) of section 18 of the Act of 1950 anything in the pipeline immediately before or at the time when any such event as is referred to in that paragraph occurs shall be deemed to have been placed therein for the purpose of affording a supply.

Application to pipeline of section 18 (2) (b) of Act of 1950.

13.—(1) The Company may use for the discharge of any water pumped or found by them during the construction of the pipeline any available stream or watercourse or any sewer or drain of any local authority in or through whose area the pipeline

Use of sewers etc. for removing water.



may be constructed or pass and for that purpose may lay down take up and alter conduits pipes and other works and make any convenient connections with any such stream watercourse sewer or drain with the limits of deviation:

Provided that—

- (a) the Company shall not discharge any water into any sewer or drain vested in or under the control of a local authority except with the consent of the local authority and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel soil or other solid substance or matter in suspension) as the local authority may reasonably impose; and
- (b) the Company shall not make any opening into any such sewer or drain save in accordance with plans reasonably approved by and under the superintendence (if given) of the local authority in whom the sewer or drain shall be vested.

(2) (a) Notwithstanding anything in subsection (7) of section 11 of the Rivers (Prevention of Pollution) Act 1951 the discharge of any water under the powers of this section into any stream (as defined in subsection (1) of the said section 11) shall be subject to the provisions of section 2 of that Act and of any byelaws made under paragraph (a) of subsection (1) of section 5 thereof.

(b) In the exercise of their powers under this section the Company shall not damage or interfere with the bed of the river or the banks thereof within the meaning of section 81 of the Land Drainage Act 1930.

(3) The Company shall take all such steps as may reasonably be necessary to secure that any water discharged by them under the powers of this section shall be as free as may be reasonably practicable from any gravel soil or other solid substance or matter in suspension.

(4) Any difference arising between the Company and a local authority or the Conservators of the River Thames (as the case may be) under this section shall be settled by arbitration.

(5) In this section the expression “local authority” has the meaning assigned to it by section 144 of the Local Government Act 1948 and the expression “the river” means the river Thames and the watercourses which are respectively to be treated as and deemed to be the main river and parts thereof and are shown by distinctive colours on the map of the river Thames (above Teddington Lock) Catchment Area prepared in pursuance of section 5 of the Land Drainage Act 1930 and for the time being in force.



**14.** The Company may make trial borings at such places (not being the carriageway of a highway) within the limits of deviation as they may think fit for the purpose of ascertaining the nature of the soil:

Power to  
make trial  
borings.

Provided that no land shall be entered for the purpose of making trial borings under this section unless the Company not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry have given notice in writing to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

**15.—(1)** Subject to the provisions of subsection (2) of this section the Company may enter into and carry out agreements with any other company body or person as to—

Agreements  
as to  
construction  
and user of  
pipeline.

- (a) the construction by either party to the agreement of the whole or any part of the pipeline;
- (b) the transfer (including a transfer by sale or lease) to or the use by such other company body or person of the whole or any part of the pipeline or any of the lines of pipes comprised in the pipeline or any interest in the pipeline ;

and the Company may by any such agreement confer upon such other company body or person all or any of the powers of this Act:

Provided that—

- (a) an agreement under paragraph (b) of this subsection shall require the approval of the Minister; and
- (b) before applying to the Minister for any such approval the Company shall give to the Metropolitan Water Board not less than twenty-eight days' notice in writing of their intention so to do.

(2) In any case where under the foregoing subsection an agreement has been entered into with any other company body or person such other company body or person shall in relation to such construction transfer or use or the exercise of any powers conferred by such agreement be subject to the like restrictions liabilities obligations and provisions as would have applied to the Company in relation thereto.

**16. (1)** In this section—

Mutual  
protection for  
undertakers'  
apparatus.

- (a) "apparatus" means any apparatus of undertakers (other than apparatus held or used for the purposes of a railway undertaking) in any land being apparatus maintainable under a statutory power or in the case of apparatus in controlled land under such a power together with an authorisation given under the First Schedule to the Act of 1950;



“ electric line ” has the meaning assigned to it by the Electric Lighting Act 1882;

“ excepted works ” means works relating only to a service pipe or service line or an overhead telegraphic line;

“ in ” in a context referring to apparatus in land includes a reference to apparatus under over or upon land;

“ operating undertakers ” means undertakers executing works in relation to apparatus of other undertakers and  
“ owning undertakers ” means undertakers in relation to whose apparatus operating undertakers execute works;

“ plans ” includes sections drawings and specifications;

“ works ” means works (other than works for the purposes of a railway undertaking) executed in any land (whether or not such land forms part of a street or of controlled land)—

(i) by the Company under the powers of this Act being works which are likely to affect apparatus of other undertakers; and

(ii) by any other undertaker in exercise of a statutory power together (in the case of works in controlled land) with an authorisation given under the First Schedule to the Act of 1950 being works which are likely to affect apparatus of the Company;

(b) words and expressions to which meanings are assigned by the Act of 1950 have the same respective meanings except where any such word or expression has a meaning assigned to it by this section.

(2) Operating undertakers shall not begin any works which are likely to affect apparatus of owning undertakers (other than excepted works) until they have given to the owning undertakers notice of their intention to execute such works accompanied by plans thereof indicating the nature of the works and the place where they intend to execute them and twenty-one days (or in the case of notice given by or to the Postmaster-General three days) have expired from the date on which the notice was given:

Provided that operating undertakers may begin any such works as are emergency works without giving notice as aforesaid but they shall as soon as is reasonably practicable thereafter give notice to the owning undertakers accompanied by plans as aforesaid and shall state the reason for their having done so.

(3) Operating undertakers shall during the execution of works which are likely to affect apparatus of owning undertakers (other than excepted works) give to the owning undertakers reasonable facilities for supervising the execution of the works.



(4) Operating undertakers shall comply with the following requirements in relation to works (that is to say):—

(a) In the case of works other than excepted works they shall comply with any requirement as to the nature of the works or as to things to be done or avoided in the execution thereof which is made by owning undertakers and compliance with which is reasonably necessary for the protection of apparatus of the owning undertakers or for securing access thereto and is reasonably practicable having regard to the time when the requirement is made;

(b) Without prejudice to the generality of the preceding paragraph of this subsection they shall—

(i) where the works include tunnelling or boring under apparatus of owning undertakers secure that there is proper temporary support for such apparatus during the execution of the works and that a proper permanent foundation is provided therefor; and

(ii) where the works include the laying of an electric line crossing or near apparatus of owning undertakers secure that the electric line is effectively insulated and is so laid as not to be capable of touching such apparatus and that such apparatus is not used as a conductor for electric current transmitted by that electric line.

(5) In the case of emergency works operating undertakers shall be treated as having complied with the requirements of the two last preceding subsections if they have taken all such steps towards satisfying those requirements as it was reasonably practicable for them to take in the circumstances.

(6) Subject to the provisions of section 32 of the Act of 1950 operating undertakers shall pay to owning undertakers compensation equal to the expense reasonably incurred by the owning undertakers of making good damage to their apparatus caused by the execution lawfully of works of the operating undertakers or by the failure of the operating undertakers to comply with any of the requirements laid down by subsection (4) of this section:

Provided that operating undertakers shall not be liable by virtue of this subsection in respect of any damage which would not have been sustained but for misconduct or negligence on the part of the owning undertakers or their contractors or agents or any person in the employ of the owning undertakers or their contractors or agents.

(7) Subject to the provisions of paragraph (c) of subsection (8) of this section obligations and liabilities imposed on operating undertakers by the preceding provisions of this section shall be



in addition to and not in substitution for obligations and liabilities to which they are subject apart from those provisions.

(8) (a) For the purposes of sections 30 31 32 and 34 subsection (3) of section 37 and subsection (3) of section 38 of the Act of 1950 the provisions of this section shall be deemed to be provisions of that Act.

(b) For the purposes of subsection (1) of the said section 32 this Act shall be deemed to have been passed immediately before the Act of 1950.

(c) The provisions of section 26 of the Act of 1950 shall not apply in any case where the relations between operating undertakers and owning undertakers are regulated by the provisions of this section in respect of apparatus in a street or controlled land.

(9) Any question which may arise under this section between operating undertakers and owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950.

Application of  
Special Roads  
Act 1949.

17. Sections 4 and 5 of the Special Roads Act 1949 shall apply to the pipeline as if the Company were a statutory undertaker within the meaning of section 119 (1) of the Town and Country Planning Act 1947.

Restriction  
on breaking  
up of streets.

18. Nothing in this Act shall exempt any person from or shall alter or affect the operation of any of the provisions of the London Traffic Act 1924.

Power to  
acquire lands.

19.—(1) Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the pipeline or for the purpose of protecting it from injury or obtaining access thereto.

(2) The powers of the Company for the compulsory purchase of land under this section shall not be exercised after the expiration of three years from the first day of October nineteen hundred and fifty-nine.

Determination  
of  
compensation.

20. Any question of disputed compensation payable under the provisions of this Act shall be determined under and in accordance with the Lands Clauses Acts as though the Company were a statutory undertaker within the meaning of section 119 (1) of the Town and Country Planning Act 1947.

Correction of  
errors in  
deposited  
plans and  
book of  
reference.

21.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the Company after giving ten days' notice to the owner lessee and



occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of Parliaments and a copy thereof in the Private Bill Office House of Commons and with the clerk of the county in which the land is situate and with every clerk of a local authority with whom a copy of the deposited plans (or so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament or who has the custody of any copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Company to take the land and construct the pipeline in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

**22.—**(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

Acquisition  
of part only  
of certain  
properties.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Company that part of the house building factory park or garden.

**23.** At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this

Power to  
expedite  
entry.



section the Company may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that without prejudice to the provisions of section 20 (Determination of compensation) of this Act the Company shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to enter  
for survey or  
valuation.

24. Any person acting on behalf of the Company and duly authorised by the Company may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Company not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry have given notice in writing to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

Disregard of  
recent  
improvements  
and interests.

25. In determining any question of disputed compensation or purchase money in respect of land or easements or rights in land acquired under this Act the tribunal shall not take into account—

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-eight; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Extinction of  
private rights  
of way.

26.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid compensation by the Company.

Power to  
acquire  
easements  
only.

27.—(1) In lieu of acquiring any land that may be acquired compulsorily under this Act the Company may for the purposes of constructing using and maintaining the pipeline or of protecting it from injury or of obtaining access thereto and doing anything necessary in connection therewith acquire compulsorily such easements and rights in that land as they may require for those purposes.



(2) Accordingly the Company may give notice to treat in respect of any such easement or right describing the nature thereof and may exercise the powers of this Act including in particular section 23 (Power to expedite entry) in respect of such easements or rights and subject thereto the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Company have acquired an easement or right only in any land under this section—

- (a) they shall not be required or (except by agreement or during the execution of any works in connection with the construction of the pipeline) entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Company to acquire the land the Company shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

28.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Company any easement or right required for the purposes of this Act in or over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

Grant of easements by persons under disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

29. For the protection of the British Transport Commission (in this section referred to as "the commission") the following provisions shall unless otherwise agreed in writing between the

For protection of British Transport Commission.



Company and the commission apply and have effect:—

(1) In this section—

“ property of the commission ” means any lands belonging to or occupied by the commission shown on the deposited plans and any railway of the commission and the works connected therewith;

“ the works ” means so much of the pipeline as may be situated upon across under or over the property of the commission or may in any way affect the same;

“ the engineer ” means an engineer to be appointed by the commission;

“ plans ” includes sections drawings and specifications:

(2) The Company shall not under the powers of this Act acquire compulsorily any lands belonging to the commission but they may in accordance with the provisions of section 27 (Power to acquire easements only) of this Act acquire such easements and rights in relation to the lands of the commission as they may require:

(3) Any electrical works or equipment comprised in the pipeline shall be so constructed erected or laid down and so maintained worked and used as to prevent any interference with any telecommunications installation or other electrical apparatus of the commission or with the use and operation by the commission of any such installation or apparatus:

(4) (a) Before either the Company or the commission install apparatus for providing cathodic protection for or in connection with so much of the pipeline or any apparatus or installations of the commission (as the case may be) as is to be situated in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the apparatus and measures necessary for the protection of the pipeline and the said apparatus or installations;

(b) The commission shall at the request of the Company from time to time supply the Company with all such information as the Company may reasonably require relating to any apparatus of the commission (not being apparatus for providing cathodic protection) which has been or is proposed to be installed by the commission and which has or will have a field of activity



interfering with any measures for providing cathodic protection for or in connection with the pipeline which have been taken by the Company or upon which the Company have consulted the commission:

(5) The Company shall not under the powers of this Act exhibit any light or construct or operate any signal which in the opinion of the commission hinders the ready interpretation of any signal on a railway or is likely to render more hazardous the use of any railway:

(6) The Company shall before commencing the construction of the works (other than works of maintenance or repair) furnish to the commission plans thereof for the approval of the engineer (which approval shall not be unreasonably withheld) and shall not commence such construction until such plans have been approved in writing by the engineer or if he shall not approve the plans until the same have been settled by arbitration:

Provided that if within twenty-eight days after such plans have been furnished to the commission the engineer has not intimated his approval or disapproval thereof he shall be deemed to have approved them:

(7) If within twenty-eight days after such plans have been furnished to the commission the commission shall give notice to the Company that in consequence of the nature of the works it is reasonably necessary that the commission should themselves construct any part of the works then if the Company desire such part of the works to be constructed the commission shall construct the same with all reasonable dispatch on behalf of the Company in accordance with the plans approved or deemed to be approved or settled as aforesaid (hereinafter in this section referred to as "the approved plans"):

(8) Upon signifying his approval or disapproval of the said plans the engineer may specify any protective works whether temporary or permanent which in his opinion should be carried out before the commencement of the works to ensure the stability of the property of the commission or to protect it from injury and such protective works as may be reasonably necessary for those purposes shall be constructed by the commission with all reasonable dispatch and the Company shall not commence the construction of the works until the engineer shall have notified the Company that the protective works have been completed:

(9) The Company shall give to the engineer twenty-eight days' notice in writing of their intention to commence



the construction of any of the works and except in case of emergency when they shall give such notice as may be reasonably practicable also of their intention to carry out any works for the repair or maintenance of the works:

- (10) The construction or execution of the works (or so much thereof as shall be carried out by the Company and any subsequent repairs or maintenance thereof) shall when commenced be carried out with all reasonable dispatch and (in any case where plans are required to be submitted under paragraph (6) of this section) in accordance with the approved plans and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to the property of the commission as may be and as little interference delay or interruption as may be to the traffic on any railway of the commission and if any damage to the property of the commission or any such interference delay or interruption shall be caused or take place the Company shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to the commission all reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage interference delay or interruption:
- (11) The engineer shall be entitled to supervise the construction of so much of the works as shall be carried out by the Company and for that purpose shall be afforded by the Company all reasonable facilities for access to the works and the Company shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (12) The commission shall at all times afford reasonable facilities to the Company and their agents for access to any works carried out by the commission under this section during their construction and shall supply the Company with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (13) If any alterations or additions either permanent or temporary to the property of the commission shall be reasonably necessary in consequence of the works such alterations and additions may be effected by the commission after giving notice to the Company and the Company shall repay to the commission the reasonable cost thereof including in respect of permanent alterations



or additions a capitalised sum representing the increased or additional cost of maintaining working and when necessary renewing any such alterations or additions:

- (14) The Company shall repay to the commission all costs charges and expenses reasonably incurred by the commission—

(a) in constructing any part of the works on behalf of the Company as provided by paragraph (7) of this section or any protective works under the provisions of paragraph (8) of this section;

(b) in respect of the employment of any inspectors signalmen watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting watching lighting and signalling the property of the commission and for preventing as far as may be all interference obstruction danger or accident arising from the works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction maintenance repair or failure of the works and which may in the opinion of the engineer require to be imposed or from the substitution or diversion of services which is also necessary for the same reason;

(d) in any additional temporary lighting of the property of the commission in the vicinity of the works which is necessary as a result of the construction maintenance repair or failure of the works:

- (15) The Company shall at all times after the construction of the works maintain the same in substantial repair and good order and condition (but in the case of so much of the works as is constructed underground only in so far as the property of the commission may be adversely affected by such condition) and when necessary renew the same to the reasonable satisfaction and under the supervision (if given) of the engineer and if and whenever the Company fail to do so the commission may make and do in and upon the lands of the commission or of the Company all such works and things as shall be requisite in that behalf and the costs and expenses reasonably incurred by the commission in so doing shall be repaid to them by the Company:

Provided that the commission shall give to the Company twenty-eight days' notice of their intention to do any such works or things except in case of emergency when they shall give such notice as may be reasonably practicable:



- (16) Any additional expense which the commission may reasonably incur after giving one month's notice to the Company in widening altering reconstructing or maintaining any railway or works of the commission in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Company to the commission:
- (17) The Company shall not exercise the powers conferred by section 14 (Power to make trial borings) of this Act on any property of the commission without first obtaining the consent of the commission but such consent shall not be unreasonably withheld and the commission may attach thereto such reasonable terms and conditions as they think fit:
- (18) Any difference arising between the Company and the commission or the engineer under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection  
of  
Conservators  
of the  
River Thames.

30. The following provisions for the protection of the Conservators of the River Thames (in this section referred to as "the conservators") shall unless otherwise agreed in writing between the Company and the conservators apply and have effect:—

- (1) In this section unless the context otherwise requires—

"apparatus" includes the locks weirs sluices and other appliances used for regulating the flow of water in the river or for discharging water into or discharging water out of the river being in every case apparatus for the maintenance of which the conservators are responsible;

"construct" includes alter extend enlarge replace or relay;

"the river" means the river Thames and the watercourses which are respectively to be treated as and deemed to be the main river and parts thereof and are shown by distinctive colours on the map of the river Thames (above Teddington Lock) Catchment Area prepared in pursuance of section 5 of the Land Drainage Act 1930 and for the time being in force;

"the specified section of the pipeline" means so much of the pipeline as is constructed over or under or within twenty-five feet of either side of the river:

- (2) The Company shall not under the powers of this Act acquire compulsorily any property of the conservators but they may in accordance with the provisions of



section 27 (Power to acquire easements only) of this Act acquire such easements and rights in relation to the property of the conservators as they may require:

(3) (a) Before commencing to construct the specified section of the pipeline the Company shall submit to the conservators plans and sections and (when reasonably required by the conservators) working drawings thereof and of any temporary works in connection with the construction of the pipeline for their reasonable approval. If the conservators do not within twenty-eight days after the submission to them of any such plans and sections and working drawings (if any) signify to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof;

(b) The specified section of the pipeline shall not be constructed otherwise than in accordance with such plans and sections and working drawings (if any) as may be approved (or are to be deemed to be approved) by the conservators or if such approval be withheld as may be settled by arbitration and shall be constructed to the reasonable satisfaction of the conservators:

Provided that if following the submission of plans sections and working drawings (if any) both to the conservators under this subsection and to the Metropolitan Water Board under the provisions of paragraph (2) of section 31 (For protection of Metropolitan Water Board) of this Act either or both of those authorities disapprove such plans sections and working drawings (if any) the plans sections and working drawings (if any) shall not be deemed to be approved unless approved by both the authorities and in any arbitration proceedings which may take place as a result of the disapproval of one of the authorities the authority which is not a party to those proceedings shall be entitled to be heard in such proceedings and the plans sections and working drawings (if any) as settled by such arbitration shall be deemed to have been approved by such authority whether or not it has been heard in the proceedings;

(c) Upon signifying their approval or disapproval of the said plans the conservators may specify any protective works whether temporary or permanent which in their opinion should be carried out to ensure the stability of any of the lands of the conservators or to protect them from injury and such protective works (hereafter in this section referred to as "protective works") as may be reasonably necessary for those purposes shall be constructed by the Company at their expense:



- (4) The Company shall at all times afford reasonable facilities to the engineer to the conservators for access to the specified section of the pipeline and any protective works connected therewith and shall supply him during their construction with all such information as he may reasonably require with regard to the specified section of the pipeline and any protective works connected therewith or the method of construction thereof:
- (5) (a) The specified section of the pipeline shall when commenced be carried out with all reasonable dispatch in accordance with the plans approved or deemed to be approved by the conservators in accordance with the foregoing provisions of this section or in case of difference as may be settled by arbitration and to the reasonable satisfaction of the engineer to the conservators and in such manner as to cause as little damage or interference with any of the apparatus of the conservators as may be;
- (b) If notwithstanding the foregoing provisions of this paragraph any such damage or interference as aforesaid shall be caused or take place the Company shall notwithstanding any such approval or settlement as aforesaid forthwith make good such damage to the reasonable satisfaction of the engineer to the conservators and pay to the conservators the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage or interference:
- (6) The Company shall on demand make good to the conservators any additional costs charges or expenses which the conservators may reasonably incur in complying with any statutory obligation to dredge or maintain a channel in the river or any part thereof by reason or in consequence of the specified section of the pipeline:
- (7) In constructing the specified section of the pipeline and any temporary or protective works connected therewith the Company shall comply with the following requirements (that is to say):—
- (a) such warning markers and lights shall be displayed as may be reasonably necessary;
- (b) before commencing the construction of any temporary works in the waterway of the river the Company shall obtain the approval of the conservators to the arrangement and position of such works;



(c) no undue obstruction shall be caused to the use of the towpath or to the navigation of the river or to towing thereon;

(d) the Company shall ensure the observance by themselves and their contractors and persons in the employment of the Company or their contractors of the provisions of the Thames Conservancy Acts 1932 and 1950 or any statutory modification thereof:

(8) After the completion of the construction of the specified section of the pipeline and any temporary or protective works connected therewith the Company shall—

(a) restore to a proper condition to the reasonable satisfaction of the conservators the towpath and banks of the river;

(b) remove from the waterway of the river all temporary works and withdraw all piles; and

(c) place on both sides of the river permanent markers of a type to be approved by the conservators to mark the position of the specified section of the pipeline:

(9) Whenever the Company propose under section 13 (Use of sewers etc. for removing water) of this Act to discharge water into the river or any tributary thereof the Company shall not discharge the water without the approval of the conservators or except at such times as the conservators may approve and in a manner approved by them as not likely to injure the river or tributary or the banks thereof to interfere with traffic thereon or to cause flooding within the area drained thereby:

Provided that—

(i) the Company may in case of emergency discharge into the river or any tributary thereof without having obtained the approval of the conservators in accordance with the foregoing provisions of this section but in that event the Company shall forthwith give to the conservators notice thereof and such further particulars relating to the discharge as may be reasonably required;

(ii) the conservators shall not unreasonably withhold their approval to the discharge of water into the river or any tributary thereof;

(iii) an approval for which application is made under this paragraph shall be deemed to have been given unless notice of disapproval is given to the Company by the conservators within seven working days after the making of the application;



(iv) the powers of the said section 13 shall not be exercised so as to damage or affect injuriously any property of the conservators (including syphons and culverts):

- (10) The Company shall not exercise the powers conferred by section 14 (Power to make trial borings) of this Act on any property of the conservators without first obtaining the consent of the conservators but such consent shall not be unreasonably withheld and the conservators may attach thereto such reasonable conditions as they think fit:
- (11) Nothing in this Act shall prejudice lessen or affect any right power or jurisdiction of the conservators under the Thames Conservancy Acts 1932 and 1950:
- (12) Any difference arising between the conservators and the Company under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection  
of  
Metropolitan  
Water Board.

31. The following provisions for the protection of the Metropolitan Water Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Company and the board apply and have effect:—

- (1) In this section "the river" and "the specified section of the pipeline" have the meanings assigned to those expressions by section 30 (For protection of Conservators of the River Thames) of this Act:
- (2) (a) Before commencing to construct the specified section of the pipeline the Company shall submit to the board plans sections and specifications and (when reasonably required by the board) working drawings thereof and of any temporary works in connection with the construction of the pipeline for their reasonable approval. If the board do not within twenty-one days after the submission to them of any such plans and sections and working drawings (if any) signify to the Company in writing their approval or disapproval thereof they shall be deemed to have approved thereof;
- (b) The specified section of the pipeline shall not be constructed otherwise than in accordance with such plans sections specifications and working drawings (if any) as may be approved (or are to be deemed to be approved) by the board or if such approval be withheld as may be settled by arbitration and shall be constructed to the reasonable satisfaction of the board:

Provided that if following the submission of plans sections and working drawings (if any) both to the



board under this subsection and to the Conservators of the River Thames under the provisions of paragraph (3) of section 30 (For protection of Conservators of the River Thames) of this Act either or both of those authorities disapprove such plans sections and working drawings (if any) the plans sections and working drawings (if any) shall not be deemed to be approved unless approved by both the authorities and in any arbitration proceedings which may take place as a result of the disapproval of one of the authorities the authority which is not a party to those proceedings shall be entitled to be heard in such proceedings and the plans sections and working drawings (if any) as settled by such arbitration shall be deemed to have been approved by such authority whether or not it has been heard in the proceedings:

- (3) Notwithstanding anything in this Act the specified section of the pipeline shall not without the consent of the board consist of more than four lines of pipes and no pipe forming part of the specified section of the pipeline shall have an internal diameter exceeding eight inches:
- (4) The engineer to the board shall be entitled to supervise the construction of the specified section of the pipeline and for that purpose shall be afforded by the Company all reasonable facilities for access to that section:
- (5) If any interruption or reduction in the supply of water by the board or any damage to or interference with any waterwork of the board (not being due to any act or default of the board their workmen or servants) shall without the written authority of the board be occasioned either by reason of the exercise of the statutory powers conferred upon the Company or by the leakage bursting or failure of the pipeline or by the act or default of the Company or any of their contractors agents workmen or servants the Company shall make compensation to the board in respect of any loss or damage which the board may sustain by reason or in consequence of such interruption or reduction damage or interference and shall indemnify the board against all claims which may be made against the board by reason or in consequence of such interruption or reduction damage or interference :

Provided that the board shall give reasonable notice to the Company of any such claim and no settlement or compromise thereof shall be made without the written consent of the Company:



- (6) Any difference arising between the board and the Company under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For further  
protection of  
Metropolitan  
Water Board.

32. The following provisions for the protection of the Metropolitan Water Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Company and the board apply and have effect:—

- (1) In this section—

"apparatus" means mains pipes or other apparatus belonging to or maintained by the board and includes any works constructed for the lodging therein of apparatus;

"approved plans" means any plans submitted by the Company to the board under paragraph (4) of this section and approved or deemed to be approved or settled by arbitration as provided for in the said paragraph;

"property of the board" means any lands belonging to or occupied by the board shown on the deposited plans and includes any aqueducts culverts plant and apparatus laid or constructed in on under or over any part of those lands;

"the works" means so much of the pipeline as may be situated upon across under or over the property of the board or may in any way affect the same and includes works of maintenance;

"the engineer" means an engineer to be appointed by the board;

"plans" includes sections drawings and specifications:

- (2) The Company shall not under the powers of this Act acquire compulsorily any property of the board but they may in accordance with the provisions of section 27 (Power to acquire easements only) of this Act acquire such easements and rights in relation to the property of the board as they may require:

Provided that—

(a) if the board for the purpose of executing any substantial development or works in on or under any property of the board require the removal of any part of the pipeline placed in such property and shall give to the Company notice in writing of such requirement and shall afford to the Company free of charge the necessary facilities and rights for the construction of such part of the pipeline in other property of the board



the Company shall at their expense after the grant to the Company of such facilities and rights proceed with all reasonable dispatch to remove such part of the pipeline as aforesaid;

(b) if any part of the pipeline has been removed (otherwise than by raising or lowering) by the Company pursuant to a requirement of the board under paragraph (a) of this proviso and constructed in other property of the board any subsequent removal and construction pursuant to a further requirement of the board under that paragraph shall be carried out at the expense of the board:

- (3) Notwithstanding anything in this Act not more than four lines of pipes shall be constructed in any property of the board without the consent of the board and no pipe forming part of any such line shall have an internal diameter exceeding eight inches:
- (4) The Company shall before commencing the works (other than works of maintenance) furnish to the board plans thereof for the approval of the engineer (which approval shall not be unreasonably withheld) and shall not commence the works until such plans shall have been approved in writing by the engineer or if he shall not approve the plans until the plans shall have been settled by arbitration:

Provided that if within twenty-eight days after such plans have been furnished to the board the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:

- (5) Upon signifying his approval or disapproval of the said plans the engineer may specify any protective works whether temporary or permanent which in his opinion should be carried out before the commencement of the works to ensure the stability of the property of the board or to protect it from injury and such protective works (hereafter in this section referred to as "protective works") as may be reasonably necessary for those purposes shall be constructed by the board or (if the board so require) wholly or partly by the Company and the Company shall repay to the board all costs and expenses reasonably incurred by the board in connection with the construction of the protective works or any part thereof:
- (6) The Company shall give to the engineer fourteen days' notice in writing of their intention to commence any of the works except in case of emergency when they shall give such notice thereof as may be reasonably practicable:



- (7) Any of the works in respect of which the Company are required to submit plans under paragraph (4) of this section shall be carried out in accordance with the approved plans and those works shall when commenced be carried out with all reasonable dispatch and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to the property of the board as may be and so as not to cause any interference with or interruption in the use of any apparatus or the supply of water by the board and if any damage to the property of the board shall be caused the Company shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to the board all reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage:
- (8) The Company shall at all times afford reasonable facilities to the engineer for access to the works and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (9) If any alterations or additions either permanent or temporary to the property of the board shall be reasonably necessary in consequence of the works such alterations and additions may be effected by the board after giving notice to the Company and the Company shall repay to the board the reasonable cost thereof including in respect of any permanent alterations or additions a capitalised sum representing the increased or additional cost of maintaining working and when necessary renewing any such alterations or additions:
- (10) The Company shall repay to the board all costs charges and expenses reasonably incurred by the board in respect of the employment of any inspectors watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting watching and lighting the property of the board and for preventing as far as may be all interference obstruction damage or accident arising from the works:
- (11) The Company shall at all times after the construction of the works maintain the same in substantial repair and good order and condition and when necessary renew the same to the reasonable satisfaction and under the supervision (if given) of the engineer and if and whenever the Company fail to do so after twenty-



eight days' notice in that behalf the board may make and do in and upon the lands of the board or of the Company all such works and things as shall be requisite in that behalf and the costs and expenses reasonably incurred by the board in so doing shall be repaid to them by the Company:

Provided that the board shall give to the Company twenty-eight days' notice of their intention to do any such works or things except in case of emergency when they shall give such notice as may be reasonably practicable:

- (12) Any additional expense which the board may reasonably incur after giving one month's notice to the Company in placing repairing altering reconstructing or maintaining any apparatus or in constructing reconstructing or maintaining any waterworks in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Company to the board:
- (13) Before either the Company or the board instal equipment for providing cathodic protection for or in connection with so much of the pipeline or the apparatus of the board (as the case may be) as is to be situate in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the equipment and measures necessary for the protection of the pipeline and the said apparatus:
- (14) (a) Any raising sinking or other alteration of any apparatus which the Company propose to make pursuant to section 4 (Power to construct pipeline) of this Act shall notwithstanding the provisions of that section be executed by the board and the reasonable expenses incurred by the board in or in connection with the execution of any such alteration shall be repaid to the board by the Company:

Provided that when requested so to do by the Company the board shall commence the execution of any such raising sinking or alteration and shall complete the same with all reasonable dispatch and if the board do not commence the execution of any such raising sinking or alteration or do not complete the same with all reasonable dispatch the Company may after giving reasonable notice to the board themselves execute such alteration;

(b) The Company shall not under the provisions of the said section 4 of this Act remove any apparatus:



- (15) Notwithstanding anything in this Act the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof as incorporated with this Act shall not apply or extend so as to authorise the occupation by the Company of any property of the board :
- (16) Nothing contained in section 6 (Temporary stoppage of roads and footpaths) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the board in or in relation to any apparatus in any road or footpath affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the board their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon or under any such road or footpath as may be necessary for inspecting repairing maintaining renewing or removing any such apparatus:
- (17) The Company shall not exercise the powers conferred by section 14 (Power to make trial borings) of this Act on any property of the board without first obtaining the consent in writing of the board but such consent shall not be unreasonably withheld and the board may attach thereto such reasonable terms and conditions as they think fit:
- (18) Notwithstanding anything in section 16 (Mutual protection for undertakers' apparatus) of this Act the said section 16 shall not regulate the relations between the Company and the board in respect of any works to be carried out by the Company or the board in land belonging to the board or any other land other than land forming part of a street or controlled land as respectively defined in the Act of 1950:
- (19) Any difference arising between the Company and the board or the engineer under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection  
of South West  
Suburban  
Water  
Company.

33. For the protection of the South West Suburban Water Company (in this section referred to as "the water company") the following provisions shall unless otherwise agreed in writing between the Company and the water company apply and have effect:—

(1) In this section—

"protected area (No. 1)" means the area coloured green and "protected area (No. 2)" means the area coloured yellow on the signed plans;



“ the protected main ” means so much of the trunk main of the water company and any works connected therewith as is or may be situated in either protected area (No. 1) or protected area (No. 2);

“ plans ” includes sections and particulars;

“ the signed plans ” means the plans signed in duplicate by Cyril Jordan on behalf of the water company and by Arthur Harold Stephenson on behalf of the Company of each of which plans one copy has been deposited with the water company and the other with the Company:

- (2) No part of the pipeline shall be constructed in the strip of land coloured pink on the signed plans:
- (3) Notwithstanding anything in section 16 (Mutual protection for undertakers' apparatus) of this Act the said section 16 shall not regulate the relations between the Company and the water company in respect of any works to be carried out by the Company or the water company in protected area (No. 1) or protected area (No. 2):
- (4) Before commencing the construction of so much of the pipeline as they propose to construct within protected area (No. 1) or protected area (No. 2) or before commencing the execution within the said areas of any works (other than works of maintenance) under section 10 (Alteration and improvement of pipeline) of this Act the Company shall serve on the water company notice of their intention to do so accompanied by plans thereof and describing the proposed time and manner of constructing or executing the same:
- (5) At any time within the period of twenty-eight days after the receipt of such notice the water company may—
  - (a) signify their disapproval of the plans submitted or of the proposed manner of construction or execution;
  - (b) require the construction at the cost of the Company of such additional works as may be reasonably necessary to protect the protected main or to facilitate the construction maintenance repair renewal or alteration thereof;

and if the water company do not within such period of twenty-eight days signify their disapproval of the said plans or manner of construction or execution they shall be deemed to have approved the same:



- (6) Any difference arising between the Company and the water company with regard to the plans so submitted the manner of construction or execution so described any additional works so required by the water company and the persons by whom any works shall be constructed shall be referred to arbitration:
- (7) The pipeline shall not be constructed and the additional works referred to in paragraph (4) of this section shall not be executed except in accordance with such plans as may be or be deemed to be approved or as may be settled by arbitration and in such manner as may be so approved or settled by arbitration and except with such additional works as may be so required or settled by arbitration and the water company may supervise the execution of any works carried out by the Company in protected area (No. 1) or protected area (No. 2) the Company giving to the water company reasonable facilities for such supervision:
- (8) The Company shall give to the water company fourteen days' notice in writing of their intention to carry out any works of maintenance of the pipeline within the protected area (No. 1) or protected area (No. 2) except in cases of emergency when they shall give such notice thereof as may be reasonably practicable:
- (9) If the water company incur any additional expense—
- (a) in constructing maintaining repairing renewing or altering the protected main by reason of the construction of the pipeline or the exercise by the Company of the statutory powers conferred on them by this Act; or
- (b) in consequence of the acts or defaults of the Company or of any of their contractors agents workmen or servants;
- all such additional expense as may be reasonably so incurred by the water company shall be repaid to them by the Company:

Provided that in determining any payment to be made by the Company to the water company under subparagraph (a) of this paragraph there shall be deducted any expenses reasonably incurred by the Company in complying with any requirements made by the water company under sub-paragraph (b) of paragraph (5) of this section to construct additional works or to take any measures which would not have been reasonably necessary for the purposes of the protected main as actually constructed by the water company:



- (10) If any interruption in the supply of water by the water company or any damage to or interference with the protected main (not being due to any act or default of the water company their workmen or servants) shall without the written authority of the water company be occasioned either by reason of the exercise of the statutory powers conferred upon the Company or by the act or default of the Company or any of their contractors agents workmen or servants the Company shall make compensation to the water company in respect of any loss or damage which the water company may sustain by reason or in consequence of such interruption damage or interference and shall indemnify the water company against all claims which may be made against the water company by reason or in consequence of such interruption damage or interference:

Provided that the water company shall give reasonable notice to the Company of any such claim and no settlement or compromise thereof shall be made without the written consent of the Company:

- (11) Any electrical works or equipment constructed erected laid down maintained worked or used by the Company in pursuance of the powers of the said section 4 shall be so constructed erected or laid down and so maintained worked and used as to prevent interference with any telegraph line or telephonic apparatus belonging to or used by the water company or with telegraphic or telephonic communication by means of such line or apparatus:
- (12) The Company shall not exercise the powers conferred by section 14 (Power to make trial borings) of this Act or by the proviso to section 84 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act within protected area (No. 1) or protected area (No. 2) without the consent of the water company (which shall not be unreasonably withheld) and the water company may attach to any such consent such reasonable terms and conditions as they think fit:
- (13) Before either the Company or the water company instal apparatus for providing cathodic protection for or in connection with so much of the pipeline or any mains pipes or other apparatus of the water company (as the case may be) as is to be situated in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the apparatus and measures necessary for the protection of the pipeline and the said mains pipes or apparatus:



- (14) Any difference arising between the Company and the water company under this section (other than a difference as to the meaning or construction of this section) shall be referred to arbitration.

For protection  
of Company  
in relation to  
future works  
of South West  
Suburban  
Water  
Company.

34. The following provisions shall unless otherwise agreed in writing between the water company and the Company apply and have effect:—

- (1) In this section expressions to which meanings are assigned by section 33 (For protection of South West Suburban Water Company) of this Act shall have the same respective meanings and “the water company’s works” means so much of the additional line of pipes as the water company intend to construct within protected area (No. 1) or protected area (No. 2):
- (2) Before commencing the construction of the water company’s works the water company shall serve on the Company notice of their intention to do so accompanied by plans thereof and describing the proposed time and manner of constructing the same:
- (3) At any time within the period of twenty-eight days after the receipt of any such notice the Company may—
  - (a) signify their disapproval of the plans submitted or of the proposed manner of construction;
  - (b) require the construction at the cost of the water company such additional works as may be reasonably necessary to protect the pipeline or to facilitate the construction maintenance repair replacing relaying or alteration thereof;and if the Company do not within such period of twenty-eight days signify their disapproval of the said plans or manner of construction they shall be deemed to have approved the same:
- (4) Any difference arising between the water company and the Company with regard to the plans so submitted the manner of construction so described and any additional work so required by the Company shall be referred to arbitration:
- (5) The water company’s works shall not be constructed except in accordance with such plans as may be or be deemed to be approved or as may be settled by arbitration and in such manner as may be so approved or settled by arbitration and except with such additional works as may be so required or settled by arbitration and the Company may supervise the execution of any works carried out by the water company in protected



area (No. 1) or protected area (No. 2) the water company giving to the Company reasonable facilities for such supervision:

- (6) The water company shall give to the Company fourteen days' notice in writing of their intention to carry out any works of maintenance of the protected main except in cases of emergency when they shall give such notice thereof as may be reasonably practicable:
- (7) Any wires posts conductors or other apparatus laid or erected by the water company in pursuance of the powers of section 20 (Application of Waterworks Clauses Act 1847 to telephones) of the South West Suburban Water Act 1934 shall be so constructed maintained and used as to prevent interference with any telegraph line or telephonic apparatus provided by the Company in pursuance of the powers of this Act or with telegraphic or telephonic communication by means of such line or apparatus:
- (8) Any difference arising between the Company and the water company under this section (other than a difference as to the meaning or construction of this section) shall be referred to arbitration.

35. The following provisions for the protection of the North Thames Gas Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Company and the board apply and have effect:—

For protection  
of North  
Thames Gas  
Board.

- (1) In this section "apparatus" means mains pipes or other apparatus belonging to or maintained by the board and includes any works constructed for the lodging therein of apparatus:
- (2) Any additional expense which the board may reasonably incur after giving one month's notice to the Company in placing repairing altering reconstructing or maintaining any apparatus in pursuance of any powers existing at the passing of this Act by reason of the existence of the pipeline shall be repaid by the Company to the board:
- (3) Before either the Company or the board instal equipment for providing cathodic protection for or in connection with so much of the pipeline or the apparatus of the board (as the case may be) as is to be situate in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the equipment and measures necessary for the protection of the pipeline and the said apparatus:



- (4) (a) Any raising sinking or other alteration of any apparatus which the Company propose to make pursuant to section 4 (Power to construct pipeline) of this Act shall notwithstanding the provisions of that section or of section 16 (Mutual protection for undertakers' apparatus) of this Act be executed by the board and the reasonable expenses incurred by the board in or in connection with the execution of any such alteration shall be repaid to the board by the Company:

Provided that when requested so to do by the Company the board shall commence the execution of any such raising sinking or alteration and shall complete the same with all reasonable dispatch and if the board do not commence the execution of any such raising sinking or alteration or do not complete the same with all reasonable dispatch the Company may after giving reasonable notice to the board themselves execute such alteration;

(b) The Company shall not under the provisions of the said section 4 of this Act remove any apparatus:

- (5) Nothing contained in section 6 (Temporary stoppage of roads and footpaths) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the board in or in relation to any apparatus in any road or footpath affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the board their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon or under any such road or footpath as may be necessary for inspecting repairing maintaining or renewing or removing any such apparatus:
- (6) Any difference arising between the Company and the board under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection  
of Central  
Electricity  
Generating  
Board South  
Eastern  
Electricity  
Board and  
Southern  
Electricity  
Board.

36. The following provisions for the protection of the undertakers shall unless otherwise agreed in writing between the Company and the undertakers apply and have effect:—

(1) In this section—

“ apparatus ” means electric lines or works (as respectively defined in the Electric Lighting Act 1882) and includes any building structure or works constructed for the lodging therein of apparatus;

“ apparatus belonging to the undertakers ” includes apparatus lawfully laid or erected by the undertakers;



“ in ” in a context referring to apparatus in land includes a reference to apparatus under over or upon land;

“ the undertakers ” means the Central Electricity Generating Board the South Eastern Electricity Board or the Southern Electricity Board as the case may be:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not under the powers of this Act acquire any apparatus belonging to the undertakers otherwise than by agreement:
- (3) (a) Any raising sinking or other alteration of any apparatus which the Company propose to make pursuant to section 4 (Power to construct pipeline) of this Act shall notwithstanding the provisions of that section or of section 16 (Mutual protection for undertakers' apparatus) of this Act be executed by the undertakers and the reasonable costs charges and expenses incurred by the undertakers in or in connection with the execution of any such alteration shall be repaid to the undertakers by the Company:

Provided that when requested so to do by the Company the undertakers shall commence the execution of any such raising sinking or alteration and shall complete the same with all reasonable dispatch and if the undertakers do not commence the execution of any such raising sinking or alteration or do not complete the same with all reasonable dispatch the Company may after giving reasonable notice to the undertakers themselves execute such alteration;

- (b) The Company shall not under the provisions of the said section 4 of this Act remove any apparatus:
- (4) The Company shall pay to the undertakers the costs charges and expenses reasonably incurred by the undertakers in or in connection with the inspection or the provision and construction of any new apparatus which may be required in consequence of the construction of the pipeline or the acquisition of rights or facilities for those purposes less the value of any apparatus which is removed (such value being calculated after removal):

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Company under this paragraph as if the works hereinbefore in the paragraph mentioned were such undertakers' works as are referred to in the said subsection (3)



and as if in that subsection for the words “ specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority” there were substituted the words “ agreed or settled by arbitration under section 36 (For protection of Central Electricity Generating Board South Eastern Electricity Board and Southern Electricity Board) of the Shell-Mex and B.P. (London Airport Pipeline) Act 1959 ”:

- (5) Before either the Company or the undertakers instal equipment for providing cathodic protection for or in connection with so much of the pipeline or the apparatus belonging to the undertakers (as the case may be) as is to be situated in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the equipment and measures necessary for the protection of the pipeline and the said apparatus:
- (6) Nothing contained in section 6 (Temporary stoppage of roads and footpaths) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the undertakers in or in relation to any apparatus in any road or footpath affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the undertakers their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon or under any such road or footpath as may be necessary for inspecting repairing maintaining renewing or removing any such apparatus:
- (7) Any difference arising between the Company and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection  
of Middlesex  
County  
Council.

37. The following provisions for the protection of the county council of the administrative county of Middlesex (in this section referred to as “ the county council ”) shall unless otherwise agreed in writing between the Company and the county council apply and have effect:—

- (1) In this section unless the context or subject otherwise requires—

“ construct ” includes maintain extend enlarge replace or alter and “ construction ” shall be construed accordingly;

“ plans ” includes sections and particulars;



“ the protected land ” means the land numbered on the deposited plans 8 in the urban district of Feltham:

(2) The Company shall not under the powers of this Act acquire compulsorily any lands belonging to the county council but they may in accordance with the provisions of section 27 (Power to acquire easements only) of this Act acquire such easements and rights in relation to the lands of the county council as they may require;

(3) Before commencing the construction of so much of the pipeline as will be situate in or under any of the protected land the Company shall submit to the county council for their reasonable approval plans relating thereto and so much of the pipeline as aforesaid shall not be constructed otherwise than in accordance with such plans as may be approved by the county council as aforesaid or if such approval be refused as may be settled by arbitration:

Provided that if within twenty-eight days after the submission to them of plans under this paragraph the county council do not signify to the Company their approval or disapproval thereof they shall be deemed to have approved thereof:

(4) The Company shall at their own cost reinstate or renew to the reasonable satisfaction of the county council any roadways drains hedges or other property of the county council (including lamps lamp-posts bollards fences posts barriers and other materials and apparatus belonging to or repairable or maintained by the county council) which may be affected by the construction of the pipeline:

Provided that—

(a) all final reinstatement work shall be carried out by the county council at the cost of the Company;

(b) any cost incurred by the Company in complying with their obligations under this paragraph shall be treated as being in or towards satisfying the obligations of the Company under this Act to pay compensation in respect of the matter:

(5) In any case in which the Company execute works which are likely to affect any sewers of the county council laid in land (not being land forming part of a street or controlled land as respectively defined by the Act of 1950) the provisions of section 16 (Mutual protection for undertakers' apparatus) of this Act shall subject to the other provisions of this section regulate the relations



between the Company and the county council as if the Company and the county council were respectively operating undertakers and owning undertakers within the meaning of that section and as if the said sewers were apparatus as therein defined:

(6) (a) The Company shall—

(i) at least twenty-eight days before commencing the initial construction of the pipeline submit to the chief fire officer of the county council plans showing the proposed route of the pipeline;

(ii) give to the said chief fire officer reasonable notice and details of all proposals for extending enlarging replacing or altering the pipeline; and

(iii) consult with the said chief fire officer as to the carrying out of any special requirements for limiting the risk of fire occurring and as to the action to be taken for dealing with any outbreak of fire or the leakage of inflammable liquids or gases;

(b) The Company shall comply with and conform to all such reasonable directions of the county council relating to fire prevention during the construction of the pipeline and at all times thereafter:

(7) It shall not be lawful for the Company in exercise of the powers of this Act to make any trial borings so as to interfere with any footpath or sewer of the county council;

(8) The approval by the county council of any plans shall not exonerate the Company from any liability or affect any claim for damages under this section or otherwise;

(9) The Company in the construction of the pipeline shall not interfere with or alter the position of any of the sewers of the county council;

(10) Notwithstanding anything in section 8 (Power to deviate) of this Act no pipe forming part of the pipeline shall be raised above the surface of the ground except for the purpose of crossing over a stream ditch hollow or similar feature unless and except so far as is shown on the deposited sections;

(11) Any difference arising between the Company and the county council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.



otherwise agreed in writing between the Company and the council apply and have effect:—

- (1) In this section unless the context or subject otherwise requires—

“construct” includes maintain extend enlarge replace or alter and “construction” shall be construed accordingly;

“plans” includes sections and particulars ;

“the protected lands” means—

(a) in relation to the urban district council of Feltham the lands numbered on the deposited plans 44 and 45 in the urban district of Feltham in the county of Middlesex;

(b) in relation to the urban district council of Sunbury-on-Thames the lands numbered on the deposited plans 3 5 22 and 24 in the urban district of Sunbury-on-Thames in the said county;

“works” includes lamps lamp-posts bollards fences posts barriers and other materials and apparatus belonging to or repairable or maintained by the council:

- (2) The Company shall not under the powers of this Act acquire compulsorily any lands belonging to the council but they may in accordance with the provisions of section 27 (Power to acquire easements only) of this Act acquire such easements and rights in relation to the lands of the council as they may require:
- (3) Before commencing the construction of so much of the pipeline as will be situate in or under any of the protected lands the Company shall submit to the council for their reasonable approval plans relating thereto and so much of the pipeline as aforesaid shall not be constructed otherwise than in accordance with such plans as may be approved by the council as aforesaid or if such approval be refused as may be settled by arbitration:

Provided that if within twenty-eight days after the submission to them of plans under this paragraph the council do not signify to the Company their approval or disapproval thereof they shall be deemed to have approved thereof:

- (4) The Company shall at their own cost reinstate or renew to the reasonable satisfaction of the council any land roadways drains hedges or other property of the council which may be affected by the construction of the pipeline:



Provided that any cost incurred by the Company in complying with their obligations under this paragraph shall be treated as being in or towards satisfying the obligations of the Company under this Act to pay compensation in respect of the matter:

- (5) Notwithstanding anything in this Act the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof as incorporated with this Act shall not apply or extend so as to authorise the occupation by the Company of any lands of the council:
- (6) In any case in which the Company execute works which are likely to affect any sewers drains or other works of the council laid in land (not being land forming part of a street or controlled land as respectively defined by the Act of 1950) the provisions of section 16 (Mutual protection for undertakers' apparatus) of this Act shall regulate the relations between the Company and the council as if the Company and the council were respectively operating undertakers and owning undertakers within the meaning of that section and as if the said sewers drains or other works were apparatus as therein defined:
- (7) The approval by the council of any plans shall not exonerate the Company from any liability or affect any claim for damages under this section or otherwise:
- (8) The Company in the construction of the pipeline shall not interfere with or alter the position of any of the sewers or drains of the council:
- (9) Before either the Company or the council instal equipment for providing cathodic protection for or in connection with so much of the pipeline or any sewer drain or works of the council (as the case may be) as is to be situate in the vicinity of the other and thereafter from time to time as may be required by notice given by either party to the other of them they shall consult together as to the equipment and measures necessary for the protection of the pipeline and the said sewer drain or works:
- (10) Notwithstanding anything in section 8 (Power to deviate) of this Act no pipe forming part of the pipeline shall be raised above the surface of the ground except so far as is shown on the deposited sections:

Provided that with the consent of the council the Company may raise any such pipe above the surface



of the ground for the purpose of crossing over a stream ditch hollow or similar feature:

- (11) Any difference arising between the Company and the council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

39.—(1) In this section the expression “land” includes any works or apparatus situated under over or upon land and any interest in land. Company to compensate and indemnify owners etc.

(2) The Company shall make compensation to the owner lessee and occupier of any land—

- (a) for any damage caused to such land; and
- (b) for any other expenses loss damages penalty or costs incurred by such owner lessee or occupier;

not otherwise provided for in this Act which may be occasioned—

- (i) by reason of the pipeline and any works constructed in connection therewith or in consequence thereof or the leakage bursting or failure of the pipeline or such works; or
- (ii) by reason of any act or omission of the Company or of any persons in their employment or of their contractors or agents whilst engaged upon the pipeline and any works constructed in connection therewith or in consequence thereof or the repair or maintenance thereof;

and the Company shall effectively indemnify and hold harmless any such owner lessee or occupier from and against all claims and demands arising out of or in connection with the pipeline and any works constructed in connection therewith or in consequence thereof or the repair or maintenance thereof or any such leakage bursting or failure or act or omission as aforesaid and the fact that any work or thing may have been done by any such owner lessee or occupier on behalf of the Company or done by the Company in accordance with any requirement of his or under his supervision shall not excuse the Company from any liability under the provisions of this section:

Provided that—

- (a) this subsection shall not impose any liability on the Company to indemnify and hold harmless any owner lessee or occupier in respect of so much of any damage as is attributable to the act neglect or default of such owner lessee or occupier or of any persons in his employment or of his contractors or agents;
- (b) any such owner lessee or occupier shall give reasonable notice to the Company of any claim or demand which



in his opinion is a claim or demand for which the Company may be liable and no settlement or compromise thereof shall be made without the consent in writing of the Company.

(3) Any difference arising between the Company and the owner lessee or occupier of any land under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

**Arbitration.**

**40.** Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them).

**Crown rights.**

**41.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

**Saving for  
town and  
country  
planning.**

**42.** This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

**Costs of Act.**

**43.** The costs charges and expenses preliminary to and of and incidental to the applying for and the preparing obtaining and passing of this Act shall be paid by the Company.





*Table of Statutes referred to in this Act*

| Short title                                                       | Session and chapter              |
|-------------------------------------------------------------------|----------------------------------|
| Lands Clauses Consolidation Act 1845 .. .. .                      | 8 & 9 Vict. c. 18.               |
| Railway Clauses Consolidation Act 1845 .. .. .                    | 8 & 9 Vict. c. 20.               |
| Railway Companies Act 1867 .. .. .                                | 30 & 31 Vict. c. 127.            |
| Telegraph Act 1869 .. .. .                                        | 32 & 33 Vict. c. 73.             |
| Telegraph Act 1878 .. .. .                                        | 41 & 42 Vict. c. 76.             |
| Electric Lighting Act 1882 .. .. .                                | 45 & 46 Vict. c. 56.             |
| Acquisition of Land (Assessment of Compensation) Act 1919 .. .. . | 9 & 10 Geo. 5. c. 58.            |
| London Traffic Act 1924 .. .. .                                   | 14 & 15 Geo. 5. c. 34.           |
| Land Drainage Act 1930 .. .. .                                    | 20 & 21 Geo. 5. c. 44.           |
| South West Suburban Water Act 1934 .. .. .                        | 24 & 25 Geo. 5.<br>c. xxxvi.     |
| Public Health Act 1936 .. .. .                                    | 26 Geo. 5. &<br>1 Edw. 8. c. 49. |
| Water Act 1945 .. .. .                                            | 8 & 9 Geo. 6. c. 42.             |
| Town and Country Planning Act 1947 .. .. .                        | 10 & 11 Geo. 6. c. 51.           |
| Local Government Act 1948 .. .. .                                 | 11 & 12 Geo. 6. c. 26.           |
| Companies Act 1948 .. .. .                                        | 11 & 12 Geo. 6. c. 38.           |
| Special Roads Act 1949 .. .. .                                    | 12 & 13 Geo. 6. c. 32.           |
| Lands Tribunal Act 1949 .. .. .                                   | 12 13 & 14 Geo. 6. c. 42.        |
| Public Utilities Street Works Act 1950 .. .. .                    | 14 Geo. 6. c. 39.                |
| Rivers (Prevention of Pollution) Act 1951 .. .. .                 | 14 & 15 Geo. 6. c. 64.           |



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*Shell-Mex and B.P. (London  
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